

2:00 PM

LINE 9

25-CIV-09346

ROSEANNA LEUNG VS. KAMIL BROZEK, ET AL.

ROSEANNA LEUNG
KAMIL BROZEK

SEAN M. NOVAK
NAVDEEP K. SINGH

DEFENDANTS BIGPANDA, INC., KAMIL BROZEK AND TOM MELZL'S DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendants BigPanda, Inc.'s (BigPanda), Kamil Brozek's, and Tom Melzl's demurrer, filed April 10, 2026, which is directed to Plaintiff Roseanna Leung's November 21, 2025 complaint, is SUSTAINED with leave to amend as to all asserted causes of action.

Background

This is a wrongful termination case involving allegations of discrimination, harassment, and retaliation. Plaintiff Roseanna Leung's complaint alleges that plaintiff is an "Asian-American female" who began working for defendant BigPanda in January, 2023. (¶ 22.) In March, 2024, plaintiff began working under defendant Tom Melzl, the company's CFO, and in July, 2024, plaintiff began reporting to defendant Kamil Brozek. (¶¶ 23-24.) As alleged, in August, 2024, plaintiff began being subjected to "harassment and discriminatory misconduct" by defendant Brozek "relating to her sex, gender and racial background." (¶ 25.) Plaintiff alleges that she witnessed defendant Brozek "engaging in unlawful harassment and discriminatory misconduct directed at other female employees." (¶ 26.) Plaintiff contends she reported this "harassment and discriminatory misconduct" to defendant Melzyl and to the company's Human Resources department, but with no resolution. (*Ibid.*) BigPanda, Inc. terminated Plaintiff's employment in December 2024. Plaintiff contends that the company terminated her for discriminatory reasons, and in retaliation for Plaintiff having complained about violations of the law.

The asserted claims. The complaint asserts the following six causes of action against each of defendant Big Panda, Inc., Kamil Brozek, and Tom Melzl:

1. Gender/Sex Discrimination (Gov. Code, § 12941 *et. seq.*);
 2. Retaliation in Violation of FEHA and Labor Code sections 1102.5 *et seq.*;
 3. Sexual Harassment and Failure to Take All Reasonable Steps Necessary to Prevent Discrimination (Gov. Code, §12940(k));
 4. Wrongful Termination;
 5. Racial Discrimination (Gov. Code, § 12941 *et seq.*);
 6. Violation of Business & Professions Code section 17200 *et seq.*
-

Defendants demurrer to each cause of action for failure to state a cause of action, and to the second and third causes of action for being uncertain. The individual defendants, Brozek and Melzl, also demurrer to the first through fifth causes of action on the basis that the causes of action fail to state a claim against them under *Reno v. Baird* (1998) 18 Cal.4th 640, 663-664.

Legal standard

A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.10, subd. (e), 430.30 & 430.70.)

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda*, (2007) 147 Cal.App.4th 740, 747.) A demurrer founded on section 430.10(e) which arises when an allegation essential to a cause of action is missing, is often referred to as a “general demurrer.” (*McKenney v. Purepac Pharm. Co.* (2008) 167 Cal.App.4th 72, 77.) “Neither trial nor appellate courts should be distracted from the main issue, or rather, the only issue involved in a demurrer hearing, namely, whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” [Citation omitted.] (*Ibid.*)

When a plaintiff “has stated a cause of action under any possible legal theory” it is error to sustain a demurrer. (*Bush v. California Conservation Corps* (1982) 136 Cal.App.3d 194, 200.) When considering demurrers, courts give the complaint a reasonable interpretation, reading it as a whole and the parts in their context, in the light most favorable to the plaintiff and liberally construed with a view to attaining substantial justice among parties. (*Villafana v. County of San Diego* (2020) 57 Cal.App.5th 1012, 1016-1017 [citations omitted].)

Uncertainty (section 430.10, subdivision (f)) is generally a difficult ground on which to sustain a demurrer:

Even though the complaint is in some respects uncertain, the courts often hold it good against demurrer on the theory that, “though not a model of pleading,” its allegations, liberally construed, are sufficient to apprise the defendant of the issues that he or she is to meet.

(3 Witkin, *Cal. Proc.* 6th Plead. § 975 (Mar. 2026 update) (citations omitted).) Demurrers for uncertainty are disfavored. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822 (and citations therein).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616 (*Khoury*) (citations omitted).) A special demurrer for uncertainty should not be sustained when the allegations of the complaint “are sufficiently clear to apprise the defendant of the issues” which must be met. (*Bacon v. Wahrhaftig* (1950) 97 Cal.App.2d 599, 605 (citations omitted).) Such a demurrer should be “granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 292 (citations omitted).)

Finally, leave to amend should be granted if it is reasonably possible for defects in pleading to be cured. As explained by the Supreme Court of California, it is well settled that “Generally, it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)

Discussion

The Complaint, and Each Cause of Action Fail to State a Cause of Action

The issue in defendants’ demurrer based upon failure to state a cause of action is whether plaintiff pleads ultimate facts, as she claims, or conclusions of law as defendants claim. A complaint must contain “a statement of the facts constituting the cause of action in ordinary and concise language.” (Code Civ. Proc., § 425.10.) Defendants rely on *Rakestraw v. California Physicians’ Serv.* (2000) 81 Cal.App.4th 39, 44 throughout their argument, but the court does not find the case helpful because it deals with the amendment of a complaint after a demurrer and the burden a plaintiff must meet to amend the complaint. While the case states the legal rule applicable to this situation, it is not helpful with the analysis for this demurrer.

A leading practice guide explains that it often difficult to distinguish between ultimate facts, evidentiary facts and legal conclusion:

[6:124] Distinguishing “ultimate facts” from “evidence” or “conclusions”: Lawyers and judges have struggled with these distinctions. “Ultimate facts” are those that raise the issues on which the right to recover depends—i.e., the essential elements of the cause of action. All the facts that are material to the cause of action—i.e., the facts that make a difference to the outcome of the case—must be alleged (see ¶ 6:400, 10:230, 10:271). [*Estes v. Eaton Corp.* (2020) 51 CA5th 636, 643, 265 CR3d 202, 208, fn. 2 (quoting text); *Foster v. Sexton* (2021) 61 CA5th 998, 1027, 276 CR3d 172, 197—“distinguishing ‘ultimate facts’ from ‘evidentiary facts’ and ‘legal conclusions’ can be difficult” (citing text); *Thomas v. Regents of Univ. of Calif.* (2023) 97 CA5th 587, 610-611, 315 CR3d 623, 641 (citing text)]

(*Cal. Prac. Guide Civ. Pro. Before Trial* § 6:124 (TRG June 2026 update).) The case law provides guidance. “[P]arrotting the legal elements of the cause of action, are not sufficient to state a claim.” (*Rincon Band of Luiseno Mission Indians etc. v. Flynt* (2021) 70 Cal.App.5th 1059, 1112.) For example, in discussing a claim for negligent hiring, supervision or retention, the Court of Appeal stated: “Plaintiff claims that BRS was negligent in hiring, supervising, and/or retaining Sanders, Giles and Carroll because BRS ‘knew or should have known that’ these employees were “unfit, and that this unfitness created a particular risk to others.’ These boilerplate legal conclusions about BRS’s knowledge are insufficient to allege a cause of action. (*O’Grady v. Merchant Exchange Productions, Inc.* (2019) 41 Cal.App.5th 771, 777 [‘we are not bound to respect a pleader’s ‘legal characterization’ of events or transactions’].)” (*Kruitbosch v. Bakersfield Recovery Services, Inc.* (2025) 114 Cal.App.5th 200, 225.) And in discussing

ratification in an employment case, the Court of Appeal explained that an allegation by Thomas, the plaintiff, that the employer, UCB, ratified the conduct would be conclusory, but that plaintiff pled ultimate facts by pleading “Knowlton, acting as UCB's employee and agent in his capacity as director of the athletics department, was informed of the misconduct but disregarded it.” (*Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 620.) The court further explained in finding that the plaintiff's allegation of special relationship was insufficient explained:

Thomas's allegation that McGuire “cultivated a special relationship of trust by [her] in his good faith and agreed to act on [her] behalf for the advancement of her athletic career” is conclusory, as the trial court said: It does not offer facts in support of the conclusion stated. The trial court explained what was missing in its further comment that the allegation “does not reflect a decision by McGuire to voluntarily undertake a fiduciary obligation to plaintiff.” None of the allegations Thomas claims the trial court failed to consider allege facts demonstrating that McGuire cultivated a “special relationship of trust” with her or agreed to act on her behalf to advance her career. The allegations that McGuire recruited Thomas to the women's soccer team, she followed his training demands and performed well, he told her she was a promising player, and it is uncommon for a player to be released despite successful performance and adherence to training demands might support finding an expectation on Thomas's part that she would remain on the team. They do not allege facts supporting a conclusion that McGuire agreed to keep Thomas on the team or otherwise act to advance her career and interests above and beyond the potentially conflicting interests of her teammates.

(*Id.* at p. 634.)

In this case, there is an absence of any facts in plaintiff's complaint to support her claims. The allegations are exclusively legal conclusions. Accordingly, the court sustains the demurrer with leave to amend for each cause of action for failure to state a cause of action.

The Second and Third Causes of Action Are Uncertain

While uncertainty is an unfavored ground for a demurrer, its use is appropriate for the second cause of action. For the second cause of action, plaintiff impermissibly combines two causes of action. (Cal. Rules of Court, rule 3.112.) For the third cause of action, plaintiff fails to provide a legal theory upon which her claim for sexual harassment is based. Combined with the fact that plaintiff fails to allege facts, this failures make the second and third cause of action uncertain. Accordingly, the court sustains the demurrer with leave to amend for the second and third cause of action for uncertainty.

The Claims Against Brozek and Melzl Based Upon Their Roles As Supervisors Are Barred

Brozek and Melzl, also demurrer to the first through fifth causes of action on the basis that the causes of action fail to state a claim against them under *Reno v. Baird*, *supra*, 18 Cal.4th at pp. 663-664, which holds that supervisory employees cannot be liable under Fair Employment and

Housing Act (FEHA) or for discharge in violation of public policy for discrimination relating to personnel management decisions. (See *Cal. Prac. Guide Employment Litigation* § 5:25 [citing *Reno v. Baird*] (TRG Mar. 2026 update); see also *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal. 4th 1158, 1162-64 [under FEHA, individual supervisors cannot be personally liable for retaliation]; *Miklosy v. Regents of Univ. of California* (2008) 44 Cal. 4th 876, 900 [“An individual who is not an employer cannot commit the tort of wrongful discharge in violation of public policy; rather, he or she can only be the agent by which an employer commits that tort.”] Plaintiff alleges in paragraph 13 of the complaint that “Defendants’ managing agents, officers or directors approved, including defendants BROZEK and MELZL, ratified and authorized the conduct of its managers, administrators, supervisors, employees, and agents leading up to Plaintiff’s ultimate termination.” These claims based upon Brozek and Melzl supervisory roles are barred. The amended complaint shall not include any allegations regarding liability based upon supervisory or managerial acts. The demurrer to the second and fourth causes of action are sustained without leave to amend unless plaintiff properly contests the tentative and provides facts at the hearing sufficient to state a cause of action. (*Frayo v. Martin* (2024) 102 Cal.App.5th 1025, 1033

However, plaintiff also alleges in 25 that she was subject to harassment and discriminatory conduct by Brozek relating to her sex, gender and racial background. (See also ¶ 25 that she witnessed him harass others). An individual can be liable for his own conduct. (Gov. Code, § 12940, subd. (j)(3) [“An employee of an entity subject to this subdivision is personally liable for any harassment prohibited by this section that is perpetrated by the employee, regardless of whether the employer or covered entity knows or should have known of the conduct and fails to take immediate and appropriate corrective action.”]; *Judicial Council Of California Civil Jury Instruction* 2522A, 2522B (Feb. 2026 update).) Thus, if plaintiff can plead ultimate facts of harassment by Brozek (or Melzl but the allegations are more general against him), then she will state a cause of action for individual liability for the first, third and fifth causes of action.

Plaintiffs have 10 days from service of written notice of entry of order to file and serve a First Amended Complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc. § 472b.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

26-CIV-00592

RIGOBERTO SOTELO, ET AL. VS. MIKE ZEPEDA, ET AL.

RIGOBERTO SOTELO
MIKE ZEPEDA

RAMON BALDONADO
MICHAEL D. LIBERTY

DEFENDANTS' MOTION FOR RELIEF FROM DEFAULT

TENTATIVE RULING:

The motion for relief from the default entered on April 15, 2026, as to defendant MJ Classics LLC d/b/a 805 Impala, is GRANTED. The declaration of Joanna Dominguez-Zepeda, manager and member of MJ Classics, offers evidence to establish that the default was entered as a result of mistake or her excusable neglect. Zepeda attempted to file the answer on three occasions, but the filings were rejected by the clerk of the court because of mistakes in the format of the pleadings. However, these type of mistakes are easily curable and should not result in default. The policy of the court is to allow such mistakes to be corrected. (See *Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1167, as modified on denial of reh'g (Apr. 14, 2026), review filed (May 26, 2026) [court should not have granted summary judgment based on unsigned declaration when the technical oversight is a curable defect]; *Mito v. Temple Recycling Center Corp.* (2010) 187 Cal.App.4th 276, 280 [requiring trial court to treat complaint as filed even in the absence of a civil case cover sheet]). The fact that an entity is unable to represent itself may be a reason for the opposing party to move to strike the answer, it is not the role of the clerk to reject a filing on that basis.

Defendant shall file the proposed answer, attached as Exhibit A to the declaration of Michael Liberty, no later than July 7, 2026.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
